The New Client

By Paul Donnelley

INTRODUCTION

ACTRESS 1: *According to an August 17, 2019 article in The Atlantic, "Roughly half of American think federal law bans discrimination on the basis of sexual orientation."*
ACTRESS 2: *But these Americans are wrong – the issue is still very murky.*
ACTRESS 1: *Despite years of acceptance of same-sex marriage nationwide . . .*
ACTRESS 2: *Despite rapidly growing cultural acceptance for LGBTQ individuals . . .*
ACTRESS 1: *Despite Pride celebrations from coast to coast.*
ACTRESS 2: *Cases of gay couples being refused service by florists, bakers, photographers are still making their way through our court systems.*
ACTRESS 1: *This selection brings the headlines to life with an extra confounding factor –*
ACTRESS 2: *The attorney hired to protect the rights of a baker who has denied service to a lesbian couple is also gay.*
TOGETHER: *The New Client by Paul Donnelley*

(PG 53-59) *At rise: Close to 9 p.m. Sunday. Margaret Henson-Mittendorf is seated on a sofa with an open laptop and stacks of file folders on a coffee table in front of her. Margaret s attention moves from a legal pad on which she is writing to typing on her laptop and back. She is concentrating deeply. There is an unseen television downstage. It is on, but muted. Lights might suggest the flickering screen. The alarm on Margaret s cell phone rings. She is startled, but immediately grabs the phone and silences the alarm.*

MARGARET: Heck. Already? *MARGARET glances to the television, then begins shutting down her laptop, straightening the folders and returning them to her briefcase. (calling off)* Hey Lee-Ann! It's almost time. *MARGARET exits quickly and returns with two bottled beers which she places on the coffee table.* Lee-Ann! *MARGARET picks up and points the remote and clicks off the mute button. We hear the unmistakable strains of the theme to "Game of Thrones."* Lee-Ann, it's starting! *LEE-ANN HENSON-MITTENDORF enters. She is coiled, poised between fury and betrayal. I got your beer. LEE-ANN glares at her, unmoving. (turning and seeing LEE-ANN) What? LEE-ANN continues glaring. (gesturing to*

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the television) Can't you let it go for an hour? *LEE-ANN continues glaring. (hitting the mute button)* For god's sake.

LEE-ANN: It's completely unacceptable.

MARGARET: It's also completely non-negotiable.

LEE-ANN: How can you say that?

MARGARET: Since when do you get to review my client list?

LEE-ANN: Oh come on . . . this is . . . it's beyond the pale. This isn't just some random client I'm objecting to.

MARGARET: No.

LEE-ANN: It's going to have a huge impact on our lives.

MARGARET: Probably.

LEE-ANN: Then how can you not give me some say . . .

MARGARET: I'm sorry. It's too late. I've said yes.

LEE-ANN: And tomorrow you can go back and tell them no.

MARGARET: I can't . . .

LEE-ANN: You can tell them . . . You can tell them . . . that your marriage is more important than standing up for bigots.

MARGARET: Lee-Ann . . .

LEE-ANN: Or whatever they're paying you.

MARGARET: Wait a minute . . .

LEE-ANN: Or that you had momentarily taken leave of your senses and now you're in your right mind.

MARGARET: Look. You don't have to agree with me. You don't have to support me . . . although that would be nice. But you do have to accept that I am going to represent Shelley and Mark and the bakery.

LEE-ANN: I don't have to accept anything.

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MARGARET: *(after a beat)* No. No, you don't. But your not accepting isn't going to change anything.

LEE-ANN: *(after a beat)* Does Bert know?

MARGARET: Excuse me?

LEE-ANN: Does Bert know?

MARGARET: Do I have permission from my male [law] partner? Is that what you're asking? Are you serious?

LEE-ANN: Does he?

MARGARET: Yes.

LEE-ANN: So, you discussed this with him but not with me.

MARGARET: Y'know I frequently discuss business with Bert that I don't discuss with you. I don't typically discuss things like the color to paint the guest bathroom or where my wife and I should go on vacation with him; and I don't typically discuss whether or not I'm going to take a case with you.

LEE-ANN: This isn't a typical case! They're bigots . . . hate-mongers . . .

MARGARET: Who have the right to counsel.

LEE-ANN: Maybe. But why do you have to be that counsel?

MARGARET: Because they asked.

LEE-ANN: And you couldn't say no?

MARGARET: Shall we tease out the levels of meaning in that question.

LEE-ANN: Don't . . .

MARGARET: Are you suggesting that I should deny them service because of what they believe?

LEE-ANN: That's not . . .

MARGARET: Or for who they are?

LEE-ANN: They wouldn't serve you!

MARGARET: That is immaterial.

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LEE-ANN: No, it isn't!

MARGARET: If Shelly turned up at your studio tomorrow night for the 5:30 Stretch Away Your Day class would you turn her away?

LEE-ANN: She wouldn't.

MARGARET: But if she did . . .

LEE-ANN: They wouldn't bake a cake for a child's birthday party because his mothers . . . because he has two mothers.

MARGARET: I know the particulars of the case.

LEE-ANN: Two women like us. Two women who are friends of ours . . . or who will be until they find out you are defending the bakers who wouldn't bake a cake for their son's birthday! How . . . how can you . . . what kind of internalized horseshit would allow you to think those people were right?

MARGARET: I don't think they're right.

LEE-ANN: You're defending them.

MARGARET: I am exploring the possibility that they may have a legal right to be wrong.

LEE-ANN: Oh my god, what does that even mean in English? No. Never mind. I don't want to hear your brief! Don't make this an abstraction. You were at that party. You know that child. You've known him his whole life. You held him when he was four days old . . . and now you can somehow justify defending people who wouldn't bake him a birthday cake? Really? At no point does simple human decency come into play for you?

MARGARET: I can see you're angry.

LEE-ANN: Oh, don't do that. Don't patronize me.

MARGARET: Okay . . . then give me a little credit.

LEE-ANN: For what?

MARGARET: Oh that's great.

LEE-ANN: What?

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MARGARET: Nothing. *LEE-ANN glares.*

MARGARET: Since there's nothing else to say . . . *(picks up the remote)*

LEE-ANN: I would appreciate it if you didn't do that.

MARGARET: I would appreciate it if you would support me in this.

LEE-ANN: There's no way.

MARGARET: I haven't mentioned this once in the last four years, but don't you really owe me your support?

LEE-ANN: I can't.

MARGARET: I gave up a partnership for you. I moved to Dogpatch for you. I gave up WBNA season tickets. I have to drive nearly two hours to see a baseball game. I did all of that willingly . . . because I share my life with you and you needed to be here for your mother. Because your mother couldn't leave Dogpatch. Oh no. God forbid!

LEE-ANN: What's your point?

MARGARET: A little quid pro quo?

LEE-ANN: No. This isn't about a little career disruption . . .

MARGARET: Oh my god . . .

LEE-ANN: This isn't about a few life-style sacrifices . . .

MARGARET: You really want to stop . . .

LEE-ANN: This is a matter of pure and clear right and wrong. These people are wrong. Being on their side is wrong.

MARGARET: Then maybe you'd be happier moving in with your mother until this blows over.

LEE-ANN: Maybe I should . . . *(There is a long moment of silence.)*

MARGARET: Okay then.

LEE-ANN: That's it? That's all you have to say? You would let me move out?

MARGARET: That is entirely your choice to make.

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LEE-ANN: Can you at least tell me why . . .

MARGARET: I was calling their bluff.

LEE-ANN: What?

MARGARET: Shelley and Mark came into my office expecting me to say no. Expecting to be able say "See, the lesbian lawyer wouldn't take our case. Oh, the hypocrisy!" I'm sure there was conference room full of high-priced talent up at Jones-Day who soiled themselves when the call came in that I said yes.

LEE-ANN: And you're not going to represent them all that effectively!

MARGARET: What? Do you really have no respect for me at all?

LEE-ANN: That would at least make sense.

MARGARET: No, it wouldn't. I am going to give this my best shot.

LEE-ANN: That's appalling.

MARGARET: Oh, I'm likely to lose. While Shelley and Mark are now stuck with little ole' me, Dee and Kelli have the HRC and millions of dollars' worth of real legal talent on their side. And our case is weaker. We'll probably do okay in Georgia, but we'll get our clocks cleaned in Federal court.

LEE-ANN: But meanwhile you'll be all over the news . . .

MARGARET: And think of the cognitive dissonance it would cause if the bigot baker's lawyer had her wife standing at her side during all those press moments.

LEE-ANN: There's no way . . .

MARGARET: Think about it.

LEE-ANN: I couldn't . . .

MARGARET: Sometimes infiltration can be as effective as confrontation. The optics will kill. Time and time and time again.

LEE-ANN: And millions of people will think what's wrong with those two? What kind of self-hatred would let them . . . ?

MARGARET: I do worry about getting lumped in with the Log Cabin losers.

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LEE-ANN: Exactly.

MARGARET: Think of it as taking one for the cause. A big one, I'll grant you.

LEE-ANN: I can't. I guess I don't have your moral sophistication or something. I have to say wrong is wrong and I won't be a party to it.

MARGARET: I'm sorry you feel that way.

LEE-ANN: It will define us for the rest of our lives . . . the traitors . . . the champions of bigotry!

MARGARET: But we'll know better.

LEE-ANN: That's not enough. For me. I can't live a life of lonely virtue for thirty or forty years.

MARGARET: I can't make you stand with me.

LEE-ANN: Are you really going to do this? In spite of how I feel about it? In spite of what it's going to do to my life without my agreement?

MARGARET: Yes.

LEE-ANN: That's it? "Yes"?

MARGARET: Yes. You're always asking me to "speak English." So here it is, clearly and unequivocally: Yes. I am going to defend the right of the Sitton Family Bakery to refuse to make a birthday cake for the son of two lesbians.

LEE-ANN: No matter what it does to me.

MARGARET: Yes.

LEE-ANN: *(after a long beat)* Wow. *LEE-ANN turns to walk out of the room.*

MARGARET: Where are you going?

LEE-ANN: I'll let you know when I decide.

LEE-ANN exits. MARGARET picks up a beer and sits. She sits holding the beer and thinking for a beat. She takes a sip, then picks up the remote as lights fade to black.

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SOURCE INFORMATION

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